

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

DWIGHT HALL,

SUMMONS

Plaintiff,

-against-

Index No.:

Date Filed:

CITY OF NEW YORK, POLICE OFFICER MANOLIN
MOLINA, SERGEANT JOSE CABAN, INSPECTOR
MANUEL DE LA ROSA, CAPTAIN JOHN HALL,
POLICE OFFICER GEOFFREY WYRICK, and
JOHN/JANE DOE,

Defendants.

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action, and to serve a copy of your Answer, or if the Complaint is not served with this Summons, to serve a Notice of Appearance on the his attorney within twenty days after the service of this Summons exclusive of the day of service, where service is made by delivery upon you personally within the state, or within thirty days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

This basis of venue is the location of the incident.

The incident occurred at or near 152 Union Street, Bronx, New York.

Dated: New York, New York
October 26, 2018

/s/
Gregory P. Mouton, Jr., Esq.
Law Office of Gregory P. Mouton, Jr., LLC
Attorney for Plaintiff Dwight Hall
305 Broadway, 7th Floor
New York, NY 10007
Phone: (646) 706-7481

Defendants' Addresses:

Defendant City of New York
100 Church Street
New York, NY 10007

Defendant Police Officer Manolin Molina
737 Melrose Avenue
Bronx, NY 10455

Defendant Sergeant Jose Caban
737 Melrose Avenue
Bronx, NY 10455

Defendant Inspector Manuel De La Rosa
450 Cross Bronx Expressway
Bronx, NY 10457

Defendant Captain John Hall
450 Cross Bronx Expressway
Bronx, NY 10457

Defendant Police Officer Geoffrey Wyrick
Unionport Road & Bronx River Parkway
Bronx, NY 10462

Defendant John/Jane Doe
Address unknown

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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DWIGHT HALL,

COMPLAINT

Plaintiff, Index No.:

-against-

Date Filed:

CITY OF NEW YORK, POLICE OFFICER MANOLIN
MOLINA, SERGEANT JOSE CABAN, INSPECTOR
MANUEL DE LA ROSA, CAPTAIN JOHN HALL,
POLICE OFFICER GEOFFREY WYRICK, and
JOHN/JANE DOE,**JURY TRIAL DEMANDED**

Defendants.

-----x

Plaintiff Dwight Hall, by his attorneys, Law Office of Gregory P. Mouton, Jr., LLC,
respectfully alleges:

NATURE OF THE ACTION

1. This is an action to recover money damages arising out of the violation of Mr. Hall's
rights under the Constitution of the United States.

JURISDICTION AND VENUE

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth,
Fifth, and Fourteenth Amendments to the Constitution of the United States.

3. The jurisdiction of this Court is predicated upon 28 U.S.C. §§ 1331, 1343, and
1367(a).

4. Venue is proper in this district pursuant to 28 U.S.C. §§ 1391(b) and (c).

JURY DEMAND

5. Mr. Hall demands a trial by jury in this action.

PARTIES

6. Plaintiff Dwight Hall is a resident of the County of Bronx, State of New York.

7. At all times relevant herein, Plaintiff was a School Safety Agent with the City of New York.

8. Defendant City of New York is a municipal organization organized under the laws of the State of New York.

9. Defendant City of New York operates the New York City Police Department (“NYPD”), a department or agency of Defendant City of New York.

10. The NYPD is responsible for the appointment, training, supervision, promotion, and discipline of police officers and supervisory police officers, including the individually named defendants herein.

11. At all times relevant herein, Defendant Police Officer Manolin Molina was an officer, employee, and/or agent of Defendant City of New York.

12. At all times relevant herein, Defendant Molina was acting within the scope of his employment with Defendant City of New York.

13. At all times relevant herein, Defendant Molin was acting under color of state law.

14. Defendant Molina is sued in his individual and official capacities.

15. At all times relevant herein, Defendant Sergeant Jose Caban was an officer, employee, and/or agent of Defendant City of New York.

16. At all times relevant herein, Defendant Caban was acting within the scope of his employment with Defendant City of New York.

17. At all times relevant herein, Defendant Caban was acting under color of state law.

18. Defendant Caban is sued in his individual and official capacities.
19. At all times relevant herein, Defendant Inspector Manuel De La Rosa was an officer, employee, and/or agent of Defendant City of New York.
20. At all times relevant herein, Defendant De La Rosa was the “PBBX Duty Inspector” of the NYPD.
21. At all times relevant herein, Defendant De La Rosa was acting within the scope of his employment with Defendant City of New York.
22. At all times relevant herein, Defendant De La Rosa was acting under color of state law.
23. Defendant De La Rosa is sued in his individual and official capacities.
24. At all times relevant herein, Defendant Captain John Hall was an officer, employee, and/or agent of Defendant City of New York.
25. At all times relevant herein, Defendant Hall was the “PBBX Duty Captain” with the NYPD.
26. At all times relevant herein, Defendant Hall was acting within the scope of his employment with Defendant City of New York.
27. At all times relevant herein, Defendant Hall was acting under color of state law.
28. Defendant Hall is sued in his individual and official capacities.
29. At all times relevant herein, Defendant Police Officer Geoffrey Wyrick was an officer, employee, and/or agent of Defendant City of New York.
30. At all times relevant herein, Defendant Wyrick was with “Highway Unit 1” of the NYPD.

31. At all times relevant herein, Defendant Wyrick was acting within the scope of his/her employment with the State of New York and the New York State Police.

32. At all times relevant herein, Defendant Wyrick was acting under color of state law.

33. Defendant Wyrick is sued in his/her individual capacity.

34. At all times relevant herein, Defendant John/Jane Doe was an officer, employee, and/or agent of Defendant City of New York. The name "John/Jane Doe" is used for this defendant the defendant's true name is unknown to Plaintiff at this time.

35. At all times relevant herein, Defendant John/Jane Doe was acting within the scope of his/her employment with Defendant City of New York.

36. At all times relevant herein, Defendant John/Jane Doe was acting under color of state law.

37. Defendant John/Jane Doe in his/her individual and official capacities.

NOTICE OF CLAIM

38. On or about August 8, 2017, Plaintiff Dwight Hall served upon, presented, and filed with Defendant City of New York a Notice of Claim in writing.

39. Defendant City of New York has refused or neglected to make any adjustment or payment.

STATEMENT OF FACTS

40. On July 28, 2017, at approximately Mr. Hall was driving his girlfriend's vehicle on Union Street in the Bronx, New York. Mr. Hall's girlfriend was also in the vehicle and had given him permission to drive her vehicle.

41. At or near 152 Union Street, Mr. Hall observed lights flashing behind him, and so he pulled over the vehicle and observed a black, unmarked vehicle behind him.

42. Three plainclothes officers, Defendants Molina, Caban, and John/Jane Doe, exited the unmarked vehicle.

43. Defendants Molina and Caban approached the driver's side door, while Defendant John/Jane Doe approached the passenger side door.

44. Defendants Molin and Caban asked Mr. Hall to step out of the vehicle, and Mr. Hall complied.

45. As Mr. Hall was getting out of the vehicle, he raised his hands above his head and repeatedly informed Defendants Molina and Caban that he was a "member of service", *i.e.* a member of the NYPD, and that his identification was in his pocket.

46. Defendants Molina and Caban were next to Mr. Hall with one in front of him and one behind him.

47. Mr. Hall was punched in the face and the picked up from behind and body slammed onto the ground. Mr. Hall's head hit the ground causing injury to Mr. Hall's head and face. The officers got on top of Mr. Hall as he was face down on the ground, with one placing his knee and body weight on Mr. Hall while punching him in his ribs. The other officer forcefully shoved Mr. Hall's face into the ground and placed his weight on Mr. Hall's face.

48. The officer on Mr. Hall's back forcefully and with excessive force twisted Mr. Hall's arms behind his back to place handcuffs on him.

49. During these actions, the officers continually yelled “Stop fighting us,” although Mr. Hall was not resisting in any manner. Mr. Hall cried out in pain as they attacked and handcuffed him and begged them to stop, but the officers refused to.

50. The handcuffs were placed on Mr. Hall excessively tight, causing Mr. Hall pain and injury to his wrists and hands. Mr. Hall begged Defendants Molina, Caban, and John/Jane Doe to loosen the handcuffs, but they refused.

51. After placing the handcuffs on Mr. Hall, Defendants Molina and Caban dug through Mr. Hall’s pockets, finding no contraband but finding is NYPD identification card. After finding the card, Defendants Molina and Caban said “Oh, shit!” upon realizing that Mr. Hall was, in fact, a member of service.

52. The foregoing interaction with Mr. Hall took several minutes, and, during that time, Defendant John/Jane Doe did nothing to prevent the attack on Mr. Hall or his arrest.

53. Mr. Hall was made to stand had the officers had him lean against his girlfriend’s vehicle. There was blood on Mr. Hall’s face and on the white shirt Mr. Hall was wearing.

54. The officers placed Mr. Hall in the unmarked police vehicle and transported him to Police Service Area 7 located at 737 Melrose Avenue, Bronx, New York. Thereafter, all of the individual defendants conspired to violate Mr. Hall’s state and federal constitutional rights and cover up the officer-on-officer assault on Mr. Hall.

55. Upon entering Public Service Area 7, Mr. Hall was immediately placed into a room. The officer that placed the handcuffs on Mr. Hall came into the room and cleaned the blood off of Mr. Hall’s face. He then gave Mr. Hall a gray shirt and told Mr. Hall that if he changed his shirt

it would be a faster process to go home, so Mr. Hall changed his shirt. The officer took Mr. Hall's shirt that had blood on it and disposed of it.

56. Mr. Hall was then placed back into the unmarked police car and driven to the 45th Precinct by Defendants Molina, Caban, and John/Jane Doe.

57. Upon information and belief, all of the individual defendants were assembled at the 45th Precinct in response to this incident. It was here that the individual defendants conspired to violate Mr. Hall's state and federal constitutional rights and cover up the officer-on-officer assault on Mr. Hall.

58. Mr. Hall was placed in a room by the individual defendants where a video recorder was set up.

59. Defendants Molina, Caban, and John/Jane Doe stated there that Mr. Hall had been intoxicated while driving and had fallen out of the car he was driving, injuring himself. They further stated that Mr. Hall had bloodshot eyes and slurred speech, among other things, in an attempt to portray Mr. Hall as being intoxicated. All of this was false.

60. Mr. Hall was then administered a field sobriety test by, upon information and belief, Defendant Wyrick. Mr. Hall passed the field sobriety test.

61. Mr. Hall was then administered a breathalyzer test by, upon information and belief, Defendant Wyrick. Mr. Hall passed the breathalyzer test, blowing, upon information and belief, a .05% on the test.

62. Upon information and belief, Defendant Wyrick told all of the other individual defendants, who were all observing these tests, that what he had been told about the condition of

Mr. Hall could not be true because he had passed all of the tests. Defendant Wyrick further told the other individual defendants that Mr. Hall was not intoxicated.

63. All of the Defendants other than Wyrick exited the room and Mr. Hall observed them speaking with each other. After they left the room, he told Defendant Wyrick that he had not injured himself falling out of the vehicle, but that he had been punched in the face. Defendant Wyrick told him that he better keep his mouth shut for his own safety.

64. The officers came back into the room and placed Mr. Hall under arrest for charges of Penal Law §§ 195.15(1) (obstructing firefighting operations), 205.30 (resisting arrest), 120.20 (reckless endangerment in the second degree), and 165.05(1) (unauthorized use of a vehicle without the owner's consent) along with Vehicle & Traffic Law §§ 1192(3) (driving while intoxicated) and 1212 (reckless driving).

65. After placing Mr. Hall under arrest, he was taken to the front desk of the 45th Precinct. There, Defendant Caban tightened the handcuffs hard causing pain and injury to Mr. Hall's hands and wrists. Mr. Hall begged Caban to loosen the handcuffs, but he refused to.

66. Mr. Hall also told Defendant Hall that he feared for his life, given everything that had happened that night. Defendant Hall's response was, in sum and substance, that Mr. Hall shouldn't have gotten arrested. After hearing Defendant Hall say this, Defendants Molin, Caban, and John/Jane Doe told Mr. Hall that they were going to take shortcuts down empty alleys, directly implying that they were going to take him somewhere where there would be no witnesses, purposefully placing Mr. Hall in fear for his life and physical safety.

67. Defendants Molina, Caban, and John/Jane Doe then transported Mr. Hall back to Police Service Area 7.

68. Mr. Hall remained at Police Service Area 7 for hours, during which time he learned from

69. Defendants Molina, Caban, and John/Jane Doe then informed Mr. Hall that his girlfriend was alleging that she had been physically assaulted by Mr. Hall, and that Mr. Hall had been operating her vehicle without her permission. This was patently false.

70. What actually was happening was that Defendants Molina, Caban, and John/Jane Doe were trying to use Mr. Hall's girlfriend to cover up what happened that morning. They attempted to coerce and intimidate her into signing a statement that alleged that Mr. Hall had assaulted her and had driven her car without her permission. She told them this wasn't true and refused to sign such a statement.

71. Despite this, Defendants Molina, Caban, and John/Jane Doe completed a complaint report and arrest report containing various pieces of blatantly false information, including, but not limited to, that Mr. Hall was recklessly operating his girlfriend's car, that his operation of the vehicle was without his girlfriend's consent, that Mr. Hall was operating the vehicle under the influence of an intoxicant, that there was a strong odor of alcohol emanating from Mr. Hall's breath, that his physical condition was intoxicated by alcohol, that Mr. Hall was not proficient in English, that he pushed his girlfriend, that Mr. Hall was stopped and arrested wearing a gray shirt, and that his girlfriend was a victim. Most egregiously, they claimed in the paperwork that Mr. Hall's blood alcohol content was at 0.5%, a level that would have rendered Mr. Hall either in a coma or dead.

72. The individual defendants spoke with the Bronx County District Attorney's Office, individually and collectively lying to the Bronx County District Attorney's Office about the events

of that morning, and that Mr. Hall had violated Penal Law §§ 195.15(1) (obstructing firefighting operations), 205.30 (resisting arrest), 120.20 (reckless endangerment in the second degree), and 165.05(1) (unauthorized use of a vehicle without the owner's consent) along with Vehicle & Traffic Law §§ 1192(3) (driving while intoxicated) and 1212 (reckless driving).

73. The individual defendants forwarded false evidence to the Bronx County District Attorney's Office, *inter alia*, arrest reports, complaint reports, evidence vouchers, and their own false statements.

74. Mr. Hall was then transported to Bronx Central Booking where he was ultimately released when the Bronx County District Attorney's Office refused to bring charges against him.

75. Thereafter, in order to cover up what happened that morning, the individual defendants began disciplinary proceedings against Mr. Hall for driving under the influence and domestic violence, with the Bronx Investigations Unit and Internal Affairs Bureau launching investigations into the fabricated allegations.

76. The individual defendants, and specifically Defendant Hall directed that Charges and Specifications be brought against Mr. Hall.

77. Defendant Hall also demanded that Mr. Hall avail himself of NYPD counseling and alcohol abuse treatment services or face termination.

78. Mr. Hall refused to enter alcohol abuse treatment and counseling given that he had not been intoxicated, and the events that occurred that night had ben concocted by the individual defendants. Mr. Hall was informed that he would be terminated. Mr. Hall was forced resigned from his position so that his employment with the NYPD would not end in termination. To seal

his fate with the NYPD and further cover up this incident, the words “Do not rehire” were written on Mr. Hall’s exit interview form.

79. Defendants, by their conduct toward Mr. Hall as alleged herein, violated Mr. Hall’s rights guaranteed by 42 U.S.C. § 1983, the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.

80. Mr. Hall suffered damage as a result of Defendants’ actions. Mr. Hall was, *inter alia*, deprived of liberty and suffered emotional distress, physical injury, mental anguish, fear, pain, anxiety, embarrassment, humiliation, loss of a job, loss of income, loss of advancement opportunities, and damage to reputation.

FIRST CAUSE OF ACTION
State & Federal Unlawful Stop and Search

81. Mr. Hall repeats and realleges each and every allegation as if fully set forth herein.

82. Defendants violated the Fourth and Fourteenth Amendments and the laws and constitution of the State of New York because they stopped and searched Mr. Hall without reasonable suspicion.

83. As a direct and proximate result of this unlawful conduct, Mr. Hall sustained the damages alleged herein.

SECOND CAUSE OF ACTION
State & Federal False Arrest

84. Mr. Hall repeats and realleges each and every allegation as if fully set forth herein.

85. The individual defendants violated the Fourth and Fourteenth Amendments and the laws and constitution of the State of New York because they arrested Mr. Hall without probable cause.

86. As a direct and proximate result of this unlawful conduct, Mr. Hall sustained the damages alleged herein.

THIRD CAUSE OF ACTION
State & Federal Excessive Force

87. Mr. Hall repeats and realleges each and every allegation as if fully set forth herein.

88. The individual defendants violated the Fourth and Fourteenth Amendments and the laws and constitution of the State of New York because they used unreasonable force on Mr. Hall.

89. As a direct and proximate result of this unlawful conduct, Mr. Hall sustained the damages alleged herein.

FOURTH CAUSE OF ACTION
State & Federal Denial of Right to a Fair Trial

90. Mr. Hall repeats and realleges each and every allegation as if fully set forth herein.

91. The individual defendants created false evidence against Mr. Hall.

92. The individual defendants forwarded false evidence to prosecutors in the Bronx County District Attorney's Office.

93. In creating false evidence against Mr. Hall, and in forwarding false evidence to prosecutors, the individual defendants violated Mr. Hall's right to substantive due process under the Due Process Clause of the Fifth and Fourteenth Amendments of the Constitution of the United States.

94. As a direct and proximate result of this unlawful conduct, Mr. Hall sustained the damages alleged herein.

FIFTH CAUSE OF ACTION
State & Federal Malicious Abuse of Process

95. Mr. Hall repeats and realleges each and every allegation as if fully set forth herein.

96. The individual defendants issued and/or caused to be issued legal process to place Mr. Hall under arrest.

97. The individual defendants arrested Mr. Hall in order to obtain collateral objectives outside the legitimate ends of the legal process, to wit, to cover up the assault and false arrest of Mr. Hall to prevent disciplinary action from being taken against them so that they would be able to keep their jobs, salaries, and advancement opportunities.

98. The individual defendants pursued these collateral objectives after issuance of legal process by, *inter alia*, forwarding false evidence to the Bronx County District Attorney's Office and continuing to participate in the prosecution of Mr. Hall.

99. The individual defendants acted with intent to do harm to Mr. Hall without excuse or justification.

100. As a direct and proximate result of this unlawful conduct, Mr. Hall sustained the damages alleged herein.

SIXTH CAUSE OF ACTION

Failure to Intervene

101. Mr. Hall repeats and realleges each and every allegation as if fully set forth herein.

102. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct; had an opportunity to prevent such conduct; had a duty to intervene and prevent such conduct; and failed to intervene.

103. Accordingly, the defendants who failed to intervene violated the Fourth, Fifth, and Fourteenth Amendments of the Constitution of the United States.

104. As a direct and proximate result of this unlawful conduct, Mr. Hall sustained the damages alleged herein.

SEVENTH CAUSE OF ACTION
Conspiracy Under State & Federal Law

105. Mr. Hall repeats and realleges each and every allegation as if fully set forth herein.

106. The individual defendants jointly participated in the deprivation of Mr. Hall's constitutional rights as set forth herein.

107. The individual defendants conspired in the deprivation of Mr. Hall's constitutional rights by collectively lying about Mr. Hall's actions and conduct; intentionally withholding and/or destroying exculpatory evidence; and by fabricating evidence in order to support the individual defendants' fabricated version of the events.

108. As a result of the individual defendants' malicious efforts to damage Mr. Hall, Mr. Hall's liberty was restricted, and Mr. Hall was restrained, subjected to handcuffing, and, among other things, falsely arrested and forced out of his position with the NYPD.

109. As a direct and proximate result of this unlawful conduct, Mr. Hall sustained the damages alleged herein.

EIGHTH CAUSE OF ACTION
Monell

110. Mr. Hall repeats and realleges each and every allegation as if fully set forth herein.

111. This is not an isolated incident. Defendant The City of New York, through its policies, customs, and practices, directly caused the constitutional violations suffered by Mr. Hall.

112. Defendant City of New York, through the NYPD, has had, and still has, hiring practices that it knows will lead to the hiring of police officers lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the Constitution of the United States and is indifferent to the consequences.

113. Defendant The City of New York, at all relevant times, was aware that the individual defendants routinely committed constitutional violations such as those at issue here and has failed to change its policies, practices, and customs to stop this behavior.

114. Defendant The City of New York, at all relevant times, was aware that the individual defendants are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

115. These policies, practices, and customs were the moving force behind Mr. Hall injuries.

NINTH CAUSE OF ACTION

Negligence

116. Plaintiff Dwight Hall repeats and re-alleges each and every allegation as if fully set forth herein.

117. Defendants failed to take any steps to protect Mr. Hall, including providing supervision.

118. As a result of the foregoing, Mr. Hall was caused to suffer severe personal injuries.

119. Said injuries were the result of the negligent, careless, reckless, wanton, illegal, and improper acts of the defendants, their agents, servants, or employees, including, but not limited to, failing to supervise the individual defendants; in violating the New York State Human Rights Law; in violating the New York City Administrative Code; in allowing Mr. Hall's welfare to become endangered; and in otherwise being negligent.

120. As a result of the foregoing, Mr. Hall has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

TENTH CAUSE OF ACTION
Negligent Supervision & Retention

121. Plaintiff Dwight Hall repeats and re-alleges each and every allegation as if fully set forth herein.

122. Defendant City of New York knew or should have known of the individual defendants' propensity for the conduct alleged herein.

123. Defendant City of New York failed to take any steps to protect Mr. Hall from the actions and/or inactions of the individual defendants.

124. The injuries sustained by Mr. Hall were the result of the negligent retention and/or supervision of the individual defendants by Defendant City of New York.

125. The individual defendants were supervisors, co-employees, and/or working together at the NYPD.

126. The individual defendants were negligent in that they failed to ensure that their co-employees provided proper supervision.

127. Despite knowing that their subordinates and/or co-employees were negligent, the Defendants continued to employ the individual defendants, and took no steps to rectify their actions.

128. As a result of the foregoing, Mr. Hall was caused to suffer severe personal injuries.

129. Said injuries were the result of the negligent, careless, reckless, wanton, illegal, and improper acts of the defendants, their agents, servants, or employees, including, but not limited to, failing to supervise the individual defendants; in violating the New York State Human Rights Law; in violating the New York City Administrative Code; in allowing Mr. Hall's welfare to become endangered; and in otherwise being negligent.

130. As a result of the foregoing, Mr. Hall has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

ELEVENTH CAUSE OF ACTION

Assault

131. Plaintiff Dwight Hall repeats and re-alleges each and every allegation as if fully set forth herein.

132. The individual defendants intentionally acted to place Mr. Hall in apprehension of imminent harmful or offensive bodily contact.

133. Mr. Hall suffered apprehension of imminent harmful or offensive bodily contact.

134. As a result, Mr. Hall has been damaged has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

TWELFTH CAUSE OF ACTION

Battery

135. Plaintiff Dwight Hall repeats and re-alleges each and every allegation as if fully set forth herein.

136. The individual defendants intended to make bodily contact with Mr. Hall.

137. The individual defendants made bodily contact with Mr. Hall.

138. Consequently, Mr. Hall suffered bodily contact which was harmful, offensive, and without Mr. Hall's consent.

139. As a result, Mr. Hall has been damaged has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

PRAYER FOR RELIEF

WHEREFORE, Mr. Hall respectfully requests judgment against Defendants as follows:

- (a) Compensatory damages against all defendants, jointly and severally;
- (b) Punitive damages against the individual defendants, jointly and severally;
- (c) Reasonable attorney's fees and costs pursuant to 28 U.S.C. § 1988; and
- (d) Such other and further relief as this Court deems just and proper.

Dated: New York, New York
October 26, 2018

By: /s/
Gregory P. Mouton, Jr., Esq.
Law Office of Gregory P. Mouton, Jr., LLC
Attorneys for Plaintiff Dwight Hall
305 Broadway, 7th Floor
New York, NY 10007
Phone & Fax: (646) 706-7481

ATTORNEY'S VERIFICATION

I, the undersigned, an attorney admitted to practice in the Courts of New York State, states under penalty of perjury that I am the attorney for Plaintiff Dwight Hall in the within action; I have read the foregoing Complaint and know the contents thereof; and the same is true to my own knowledge, except as to the matters I believe to be true. The reason this verification is made by me and not by my client is that my client is not presently in the County where I maintain my offices. The grounds of my belief as to all matters not stated upon my knowledge are the materials in my file and the investigation conducted by my office.

Dated: New York, New York
October 26, 2018

/s/
Gregory P. Mouton, Jr., Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

DWIGHT HALL,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER MANOLIN MOLINA, SERGEANT JOSE
CABAN, INSPECTOR MANUEL DE LA ROSA, CAPTAIN JOHN HALL, POLICE OFFICER
GEOFFREY WYRICK, and JOHN/JANE DOE,

Defendants.

SUMMONS & VERIFIED COMPLAINT

LAW OFFICE OF GREGORY P. MOUTON, JR., LLC

305 Broadway, 7th Floor
New York, NY 10007
Phone & Fax: (646) 706-7481